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September 18, 2006

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✓ SEP 27 2006
✓ Division of Reclamation,
Mining and Safety

✓ Ms. Michele Ramirez
Division of Reclamation Mining and Safety
Department of Natural Resources
1313 Sherman Street, Room 215
Denver, Colorado 80203
(303) 866-3567

RE: Lyons Quarry, Permit No. M-1977-208
Dowe Flats Quarry, Permit No. M-1993-041
Larimer County Quarry, Permit No. M-1977-341 ✓

Dear Ms. Ramirez:

Enclosed are the annual reclamation reports for Permits M-1977-208 (Lyons Quarry), M-1993-041 (Dowe Flats Quarry), and M-1977-341 (Larimer County Quarry).

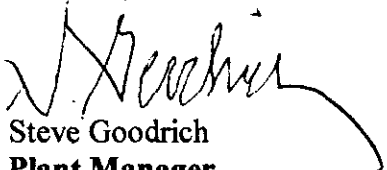
We have also enclosed the corresponding annual fees in the form of one check:

- \$688 for Permit No. M-1977-208
- \$688 for Permit No. M-1993-041
- \$688 for Permit No. M-1977-341

Please contact me if you have any questions concerning these reports.

Sincerely,

CEMEX, INC.


Steve Goodrich
Plant Manager



DOWE FLATS QUARRY

PERMIT NO. M-1993-041

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ANNUAL RECLAMATION REPORT

DOWE FLATS MINE, LYONS, COLORADO

PERMIT NO. M-1993-041

2005 - 2006

The purpose of this report is to comply with the Mined Land Reclamation Act of 1976, Statute 34-32-112 of House Bill No. 1065. This report follows the requirements covering annual reports in the Rules and Regulations of Colorado Mined Land Reclamation Board, Section 2.4. The permit for the Dowe Flats Mine was issued on May 20, 1993 and amended on December 14, 1994.

The report shows the location of current operation. The map and table indicates the activity, the areas affected, and the total acreage for each type of operation.

There are 85 acres of major disturbance:

- Quarry Pit85 Acres

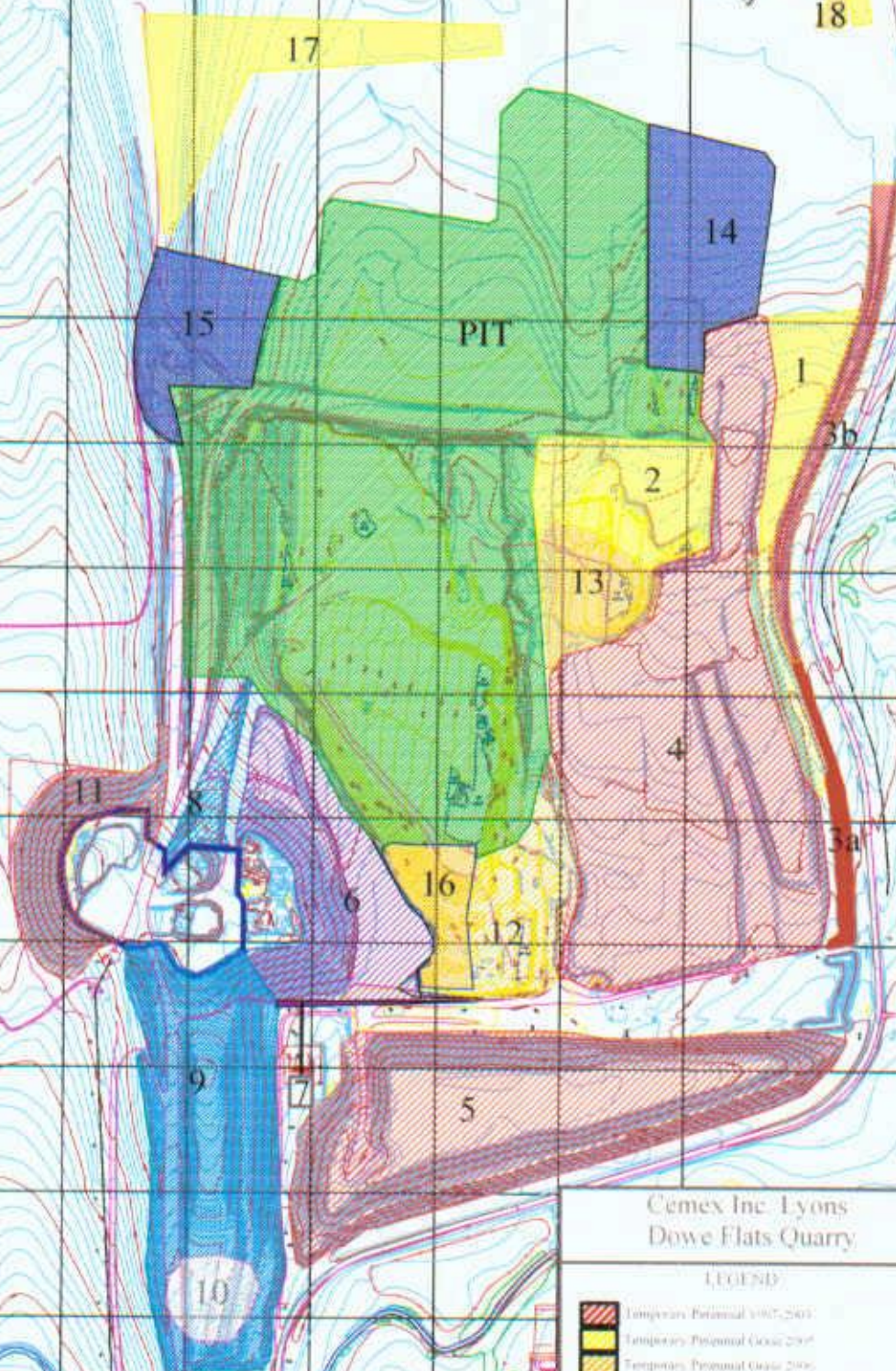
There are 23.5 acres of reclaimed land in 2006:

- Reclamation Map Areas: 12,13,15,16,18.....23.5 Acres
(Note: For individual acreage's for each of the above reclaimed areas please refer to the attached table)

A total of 171.5 acres have been reclaimed to date:

- Reclamation Map Areas 1-19..... 171.5 Acres

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Cemex Inc. Lyons
Dowe Flats Quarry

LEGEND

- Temporary Perennial 1987-2001
- Temporary Perennial Grass 2002
- Temporary Perennial Grass 2003
- Permanent Perennial 2002-2003
- Spring 2003 Vegetation Perennial
- Pit
- Temporary Annual 2003
- Low Vegetation

CEMEX Mine Reclamation Activities

Reclamation Map Reference Area Number	Area Use	Year	Approx. Acreage	Seeding Mixture
1	Subsoil stockpile	2005 spring	2.6	Extended Temporary Perennial
2	Subsoil stockpile	2005 spring	8.2	Extended Temporary Perennial
3A	Visual berm topsoil	1997-1998	1.6	Temporary Perennial
3B	Visual berm fill material	1997-1998	3.5	Temporary Perennial
4	Subsoil stockpile	2002-2003	41.9	Temporary Perennial
5	Fill Material Stockpile	1999-2000	25.6	Permanent 1997-2002
6	Fill Material Stockpile	2005 spring	11.5	Extended Temporary
7	Fill Material Stockpile	2005 spring	3	Extended Temporary
8	Restored grade	2001-2002	8.6	Permanent 1997-2002
9	Restored grade	2000-2001	16.4	Permanent 1997-2002
10	Restored grade Low Vegetation Area	2000-2001		Permanent 1997-2002
11	Fill Material Stockpile	1997-1998	5.7	Temporary Perennial
12	Fill Material Stockpile	2005	7.5	Temporary Perennial
13	Fill Material Stockpile	2006	4.5	Temporary Perennial
14	Site Stabilization	2006	9	Temporary Annual Cover Crop
15	Site Stabilization	2006	6.5	Temporary Annual Cover Crop
16	Fill Material Stockpile	2006	3.1	Temporary Perennial Grass-Only
17	Restored Haul Road	2005	9.4	Grass Only
18	Topsoil Stockpile	2006	0.4	Temporary Perennial Grass-Only
19	Topsoil Stockpile	2006	2.5	Temporary Perennial Grass-Only

Total Reclaimed To Date 171.5

Total Reclaimed 2006 23.5

Division of Reclamation, Mining & Safety

1313 Sherman Street, Room 215

Denver, CO 80203

Sales Receipt

Date	Sale No.
9/28/2006	17360

Sold To
Cemex, Inc.

Check# / Cash
01577053

Description	NOTE	Amount
Min: Annual Fee	M-1977-208	688.00
Min: Annual Fee	M-1977-341	688.00
Min: Annual Fee	M-1993-041	688.00
Total		\$2,064.00